

ALITO, J., dissenting

is not a precedent. See *ante*, at 101–102. This interpretation of the State’s position is questionable,¹³ but even if Louisiana made that concession, how could that settle the matter? What about Oregon, the only State that still permits non-unanimous verdicts? Oregon certainly did not make such a concession. On the contrary, it submitted an *amicus* brief arguing strenuously that *Apodaca* is a precedent and that it should be retained. Brief for State of Oregon as *Amicus Curiae* 6–32. And what about any other State that might want to allow such verdicts in the future? So the majority’s reliance on Louisiana’s purported concession simply will not do.

Our three colleagues’ next try is to argue that *Apodaca* is not binding because a case has no *ratio decidendi* when a majority does not agree on the reason for the result. *Ante*, at 104, and n. 54. This argument, made in passing, constitutes an attack on the rule that the Court adopted in *Marks v. United States*, 430 U.S. 188 (1977), for determining the holding of a decision when there is no majority opinion. Under the *Marks* rule, “[w]hen a fragmented Court decides a case and no single rationale explaining the result enjoys the assent of five Justices, the holding of the Court may be viewed as that position taken by those Members who concurred in the judgments on the narrowest grounds.” *Id.*, at 193 (internal quotation marks omitted). This rule ascribes precedential status to decisions made without majority agreement on the underlying rationale, and it is therefore squarely contrary to the argument of the three Justices who regard *Apodaca* as non-precedential.

The *Marks* rule is controversial, and two Terms ago, we granted review in a case that implicated its meaning. See *Hughes v. United States*, 584 U.S. 675 (2018). But we ultimately decided the case on another ground and left the

¹³ What the State appears to have meant is that Justice Powell’s reasoning was not binding. See Brief for Respondent 47; Tr. of Oral Arg. 37–38.